

Application For DUI Defense Law Board Certification National College for DUI Defense, Inc.

May 13, 2011

Dear Applicant:

Thank you for applying to become Board Certified in the area of DUI Defense Law. The National College for DUI Defense, Inc. (NCDD) is presently the only organization accredited by the American Bar Association (ABA) in this specialty field. ABA accreditation is currently recognized in over 20 states, and that list continues to grow.

While you may find the application process a bit tedious, it is necessary to obtain a lot of information to ensure that only those lawyers who have demonstrated among other qualifications, both exceptional experience and exceptional knowledge in the area of DUI Defense Law become Board Certified.

Before completing your application, it is strongly recommended that you *carefully* review the Rules Governing Board Certification by the National College for DUI Defense, Inc. The most recent rules may be found online at www.ncdd.com. Follow the appropriate links to certification and the Rules Governing Board Certification.

Should you have any questions regarding the completion of your application, please contact the Executive Director of the NCDD, Ms. Rhea Kirk at:

445 South Decatur Street
Montgomery, Alabama 36104
(334) 264-1950
Email Address: rhea@ncdd.com

Once you have completed the application, you should mail your application, together with the fees, to Ms. Kirk at the address noted above. Please keep a copy of your application so that you may refer to it in the event we have questions once the application is received by the Committee.

It is also important to notify the NCDD of any changes in your contact information while your application remains pending.

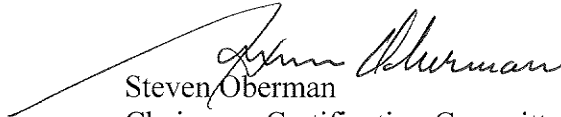
Please note that before an applicant becomes Board Certified, the applicant must meet all prerequisites for Board Certification as defined in the rules. This includes, but is not limited to, complying with the requisite litigation experience, passing the examination, obtaining the requisite number of positive references, and finally, approval as a Board Certified lawyer by the NCDD Board of Regents.

Under our current rules, you may take the Certification Examination prior to meeting the other prerequisites, but you will not become certified until *all* prerequisites have been met. Please set aside sufficient time to study and otherwise prepare for the Certification Examination. There is a link on the NCDD web site with suggested reading materials to assist you in preparing for the exam. There will also be instructions and recommendations in writing the answers for the examination that will be contained in materials which will be sent to you at a later date.

Again, thank you for taking the first step to become Board Certified. Achieving Board Certification is a true honor which is held by only a tiny percentage of lawyers in the nation. As of July 2, 2010, only 42 lawyers in the nation hold this distinction. Reaching this high threshold of experience and standard of practice provides not only self-satisfaction, but may assist you in distinguishing yourself from the many lawyers who claim expertise in this area of law.

I look forward to adding you to the list of board certified lawyers. With kindest regards, I remain

Very truly yours,


Steven Oberman
Chairman, Certification Committee

SO/kd

Please mail the completed application, along with your application fees to:

Certification Evaluation Committee
National College for DUI Defense, Inc.
445 S. Decatur Street
Montgomery, AL 36104

Date of Application: _____

The applicant should retain a copy of the completed application in the event the Certification Committee has questions to discuss with the applicant about the content of the application.

SECTION A: BACKGROUND INFORMATION

1. Name: _____

Preferred Nickname: _____

2. Bar Number: _____ State: _____

3. Firm: _____

4. Address: _____

5. City: _____

6. State: _____ Zip: _____

7. Telephone: Work (_____) _____ Home (_____) _____

Cell (_____) _____ Other (_____) _____

8. Facsimile: (_____) _____

9. E-mail 1: _____ Email 2: _____

Website: _____

10. In what year were you first admitted to the bar? (See Rule 2.1) _____

11. What is your state of principal practice? _____

12. Does your state have a criminal certification program? _____

13. If so, are you certified by your state? _____

14. List other states in which you have been and/or are presently licensed to practice law. _____

15. Have you ever been professionally disciplined? _____

(If you answer yes to number 15, attach findings and an explanation.)

16. What percentage of your practice is currently devoted to DUI defense?

(See Rule 2.1) _____ %

17. For how many years have you practiced DUI defense law?

(See Rule 2.1) _____

18. Will you be requesting any special considerations including, but not limited to, additional time to take the examination due to a disability recognized under law? _____

(If so, please: a) Detail the special considerations you are requesting; b) Provide medical, psychological, or other proof that you are entitled to the same; and c) Identify by name, address, and phone number other institutions or organizations which have previously granted you such considerations.)

SECTION B: REFERENCES (See Rule 2.2.1)

B-1 Please list at least four (4) judicial references.

Since four judicial references are required, the Committee recommends you list six in the event one or more references are delayed. None of the references can be related to or engaged in the legal practice of law with the applicant. The Reference Form can be found at the end of the Certification link beside the Application download.

B-1.1	Name	Title	Jurisdiction
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Address: _____

Telephone Number: _____

B-1.2	Name	Title	Jurisdiction
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Address: _____

Telephone Number: _____

B-1.3	Name	Title	Jurisdiction
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Address: _____

Telephone Number: _____

B-1.4	Name	Title	Jurisdiction
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Address: _____

Telephone Number: _____

B-1.5	Name	Title	Jurisdiction
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Address: _____

Telephone Number: _____

B-1.6 Name	Title	Jurisdiction
Address:		

Telephone Number:

B-2 Please list at least four (4) references from lawyers
None of the references can be related to or engaged in the legal practice of law with the applicant. The Reference Form can be found at the end of the Certification link beside the Application download.

B-2.1 Name

Address:

Telephone Number:

B-2.2 Name

Address:

Telephone Number:

B-2.3 Name

Address:

Telephone Number:

B-2.4 Name

Address:

Telephone Number:

B-2.5 Name

Address:

Telephone Number:

B-2.6 Name

Address: _____

Telephone Number: _____

SECTION C: REQUISITE TRIALS (See Rule 2.1.1)

Please list twenty (20) DUI trials, which you have taken to verdict or judgment within the past three (3) years (within the 36 months preceding the date of application). Be certain to complete all requested information so we may verify your involvement in the case.

IMPORTANT: In addition, please obtain a copy of the docket sheet for each of the cases listed below from the applicable court clerk and attach it to the application.

	Name of Defendant	Case No.	Date of Judgment	Court & Name of Judge	Court Clerk Name, Address & Phone No.
C1					
C2					
C3					
C4					
C5					
C6					
C7					

C8					
C9					
C10					
C11					
C12					
C13					
C14					
C15					
C16					
C17					
C18					

C19					
C20					

SECTION D: CONTESTED MATTERS (See Rule 2.1.1)

Please list forty (40) contested matters involving the taking of evidence in a DUI or DUI-related case, i.e. hearings or motions within the past three (3) years (within the 36 months preceding the date of application) **WHICH ARE NOT PREVIOUSLY LISTED AS A TRIAL IN SECTION C.** These contested matters should involve both opposing counsel and a judge who is also licensed as a lawyer that receives evidence at hearings and trials and has preferably been appointed by a governmental entity or is an elected official. Be certain to complete all requested information so we may verify your involvement in the case. A factor to consider, but not a requirement, is whether evidence is received from a witness other than a record-keeper and whether the Rules of Evidence apply in that forum.

IMPORTANT: In addition, please obtain a copy of the docket sheet for each of the cases listed below from the applicable court clerk and attach it to the application.

	Name of Defendant	Case No.	Date of Judgment	Court & Name of Judge	Court Clerk Name, Address & Phone No.	Nature of Proceeding	# of Witnesses other than Record-Keepers
D1							
D2							
D3							
D4							

D5							
D6							
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D40							

SECTION E: CLE (See Rule 2.3)

The Rules Governing Board Certification (§2.3) require at least 36 hours of College-approved CLE within the last three years (36 months prior to the submission of this application). Please list the DUI-related Continuing Legal Education courses you have attended to satisfy this requirement.

This image shows a blank sheet of white paper with horizontal ruling lines. The lines are evenly spaced and extend across the width of the page. There are no margins, text, or other markings on the paper.

The applicant should retain a copy of the completed application in the event the Certification Committee has questions to discuss with the applicant about the content of the application.

DISCLOSURE OF IDENTITY TO OTHER APPLICANTS

By checking the appropriate box below and signing this Application, I am indicating my permission or lack thereof to allow my identity as an applicant to be disclosed to the other applicants prior to the actual taking of the test. I understand that another applicant may contact me for the purposes of exchanging ideas and/or forming a study group. I understand that no contact information other than my name will be provided to any other applicant without my express permission.

- ☐ I agree to allow my identity as an applicant to be disclosed to other applicants taking the upcoming certification test.
- ☐ I **do not** agree to allow my identity as an applicant to be disclosed to other applicants taking the upcoming certification test.

I FURTHER UNDERSTAND THAT THE PEER REVIEW PROCESS IS UNABLE TO SERVE ITS PURPOSE UNLESS THE INDIVIDUALS FROM WHOM INFORMATION IS REQUESTED ARE GUARANTEED COMPLETE CONFIDENTIALITY AND ANONYMITY. BY APPLYING FOR CERTIFICATION, I EXPRESSLY AGREE TO THE CONFIDENTIALITY AND ANONYMITY OF THE PEER REVIEWERS AND THE PROCESS. I FURTHER EXPRESSLY WAIVE ANY RIGHT TO REQUEST ANY INFORMATION OBTAINED THROUGH THE PEER REVIEW PROCESS AT ANY STAGE OF THE CERTIFICATION PROCESS.

AFFIRMATION OF CONTENTS

I have personally reviewed all of the above information and hereby swear, affirm, and declare under penalty of perjury that the above information is complete, true, accurate, and correct.

Signature: _____

The undersigned, a Notary Public in and for the County of _____, in the State of _____, herewith certify that _____
APPLICANT NAME
appeared in person, and before me SUBSCRIBED and SWORE to the information contained in the above Application for Board Certification, under penalties for perjury, this _____ day of _____, 20____, and to which witness my hand and seal.

Notary Public

Stamp or Seal

Printed Name

My commission expires _____, 20____.

PAYMENT INFORMATION

____ Enclosed find a check for \$750.00 for the examination fee of \$500.00 and the non-refundable filing fee of \$250.00 made payable to:

The National College for DUI Defense, Inc.

Charge \$750.00 to my:

____ Visa #: _____ Exp. Date _____

____ MasterCard #: _____ Exp. Date _____

____ Amer. Express #: _____ Exp. Date _____

Signature (for credit cards only) _____

Billing Address for Credit Card:

To the Applicant:

It is your responsibility to ensure that the NCDD has your current contact information. If your phone number, address, or email changes, please do not forget to let us know.